



Bill Number: S.B. 1473

Kavanagh Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Removes assisted living facilities from the prescribed municipal and county occupancy limit regulations.
2. Prohibits a municipality or county from imposing a cap on the number of residents who may reside at an assisted living home that is lower than 10 residents, rather than lower than the number of residents allowed by statute, rule or an issued license.
3. Prohibits a municipality or county from restricting an assisted living home from operating on a property that is zoned for residential use based on the number of residents who reside at the home if the number is 10 or fewer, rather than in compliance with statute, rule or an issued license.
4. Removes the prohibition on a municipality or county from restricting an assisted living home from operating on a property that is zoned for residential use based on its classification as a health care institution.
5. Allows a municipality or county to enforce and maintain zoning, building, fire, safety and health codes and regulations (codes and regulations), rather than only enforce applicable codes and regulations.
6. Removes the requirement for the codes and regulations to be applied uniformly to all similar residential dwellings.
7. Allows the codes and regulations to be enforced and maintained if the effect is not imposing an occupancy limit on an assisted living home that is more restrictive than allowed by an issued license, rather than by statute, rule or an issued license.
8. States that the occupancy limit, rather than the occupancy and zoning regulation, of an assisted living home is of statewide concern and not subject to further regulation by a municipality or county.
9. States that assisted living occupancy regulations do not prohibit or restrict a municipality or county from adopting a distance requirement in accordance with statute.
10. Applies the assisted living occupancy regulations to an assisted living home that is licensed after the effective date.
11. Makes conforming changes.

KAVANAGH FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1473
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 9, chapter 4, article 6.1, Arizona Revised
3 Statutes, is amended by adding section 9-462.15, to read:

4 9-462.15. Assisted living homes; occupancy cap; zoning
5 regulations; relief; state preemption;
6 applicability; definition

7 A. A MUNICIPALITY MAY NOT ADOPT, ENFORCE OR MAINTAIN ANY LAW,
8 ORDINANCE OR OTHER REGULATION RELATING TO THE OPERATION OF AN ASSISTED
9 LIVING HOME ~~[OR ASSISTED LIVING FACILITY]~~ THAT DOES ANY OF THE FOLLOWING:

10 1. IMPOSES A CAP ON THE NUMBER OF RESIDENTS WHO MAY RESIDE AT AN
11 ASSISTED LIVING HOME ~~[OR ASSISTED LIVING FACILITY]~~ THAT IS LOWER THAN ~~[THE~~
12 ~~NUMBER OF RESIDENTS THAT ARE ALLOWED PURSUANT TO TITLE 36, CHAPTER 4,~~
13 ~~RULES ADOPTED BY THE DEPARTMENT OF HEALTH SERVICES OR THE ASSISTED LIVING~~
14 ~~HOME'S OR ASSISTED LIVING FACILITY'S LICENSE]~~ [TEN RESIDENTS].

15 2. RESTRICTS AN ASSISTED LIVING HOME ~~[OR ASSISTED LIVING FACILITY]~~
16 FROM OPERATING ~~[IN AN AREA]~~ [ON A PROPERTY] THAT IS ZONED FOR RESIDENTIAL
17 USE BASED ON EITHER OF THE FOLLOWING:

18 (a) THE NUMBER OF RESIDENTS WHO RESIDE AT THE ASSISTED LIVING HOME
19 ~~[OR ASSISTED LIVING FACILITY]~~ IF THE NUMBER OF RESIDENTS IS ~~[IN COMPLIANCE~~
20 ~~WITH THE NUMBER OF RESIDENTS THAT ARE ALLOWED PURSUANT TO TITLE 36,~~
21 ~~CHAPTER 4, RULES ADOPTED BY THE DEPARTMENT OF HEALTH SERVICES OR THE~~
22 ~~ASSISTED LIVING HOME'S OR ASSISTED LIVING FACILITY'S LICENSE]~~ [TEN OR
23 FEWER].

1 (b) THE CLASSIFICATION OF THE ASSISTED LIVING HOME ~~[OR ASSISTED~~
2 ~~LIVING FACILITY AS A HEALTH CARE INSTITUTION OR]~~ [AS] ASSISTED LIVING USE.

3 3. REQUIRES AN ASSISTED LIVING HOME ~~[OR ASSISTED LIVING FACILITY]~~
4 TO OBTAIN A VARIANCE, CONDITIONAL USE PERMIT, REASONABLE ACCOMMODATION OR
5 REZONING BASED SOLELY ON THE NUMBER OF RESIDENTS WHO RESIDE AT THE
6 ASSISTED LIVING HOME ~~[OR ASSISTED LIVING FACILITY]~~.

7 B. ~~[EXCEPT AS PROVIDED IN SUBSECTION A OF THIS SECTION.]~~ A
8 MUNICIPALITY MAY ENFORCE ~~[APPLICABLE]~~ [AND MAINTAIN ZONING.] BUILDING,
9 FIRE, SAFETY AND HEALTH CODES AND REGULATIONS IF THE CODES AND REGULATIONS
10 ~~[ARE BOTH OF THE FOLLOWING:]~~

11 ~~1. APPLIED UNIFORMLY TO ALL SIMILAR RESIDENTIAL DWELLINGS.~~

12 ~~2.]~~ DO NOT HAVE THE EFFECT OF IMPOSING AN OCCUPANCY LIMIT THAT IS
13 MORE RESTRICTIVE THAN ~~[THOSE THAT ARE]~~ [WHAT IS] ALLOWED PURSUANT TO
14 ~~[TITLE 36, CHAPTER 4, RULES ADOPTED BY THE DEPARTMENT OF HEALTH SERVICES~~
15 ~~OR]~~ THE ASSISTED LIVING HOME'S ~~[OR ASSISTED LIVING FACILITY'S]~~ LICENSE.

16 C. A PERSON MAY ASSERT A VIOLATION OF THIS SECTION AND MAY BRING AN
17 ACTION FOR DECLARATORY OR INJUNCTIVE RELIEF IN A COURT OF COMPETENT
18 JURISDICTION. THE COURT MAY AWARD ATTORNEY FEES AND COSTS TO A PREVAILING
19 PLAINTIFF.

20 D. THE OCCUPANCY ~~[OR ZONING REGULATION]~~ [LIMIT] OF AN ASSISTED
21 LIVING HOME ~~[OR ASSISTED LIVING FACILITY]~~ IS OF STATEWIDE CONCERN. THE
22 OCCUPANCY ~~[OR ZONING REGULATION]~~ [LIMIT] OF AN ASSISTED LIVING HOME ~~[OR~~
23 ~~ASSISTED LIVING FACILITY]~~ PURSUANT TO THIS SECTION IS NOT SUBJECT TO
24 FURTHER REGULATIONS BY A MUNICIPALITY AND PREEMPTS ALL INCONSISTENT LAWS,
25 ORDINANCES OR OTHER REGULATIONS ADOPTED BY THE MUNICIPALITY.

26 [E. THIS SECTION DOES NOT PROHIBIT OR RESTRICT A MUNICIPALITY FROM
27 ADOPTING A DISTANCE REQUIREMENT PRESCRIBED IN SECTION 9-462.09.]

28 F. THIS SECTION APPLIES TO AN ASSISTED LIVING HOME THAT IS LICENSED
29 AS OF THE EFFECTIVE DATE OF THIS SECTION AND AN ASSISTED LIVING HOME THAT
30 IS LICENSED AFTER THE EFFECTIVE DATE OF THIS SECTION.]

31 ~~[F.]~~ [G.] FOR THE PURPOSES OF THIS SECTION~~[.]~~~~[F.]~~

32 ~~[1. "ASSISTED LIVING FACILITY" HAS THE SAME MEANING PRESCRIBED IN~~
33 ~~SECTION 36-401.]~~

34 ~~2.]~~ ASSISTED LIVING HOME" HAS THE SAME MEANING PRESCRIBED IN
35 SECTION 36-401.

36 ~~[3. "HEALTH CARE INSTITUTION" HAS THE SAME MEANING PRESCRIBED IN~~
37 ~~SECTION 36-401.]~~

1 Sec. 2. Title 11, chapter 6, article 2, Arizona Revised Statutes,
2 is amended by adding section 11-820.05, to read:

3 11-820.05. Assisted living homes; occupancy cap; zoning
4 regulations; relief; state preemption;
5 applicability; definition

6 A. A COUNTY MAY NOT ADOPT, ENFORCE OR MAINTAIN ANY LAW, ORDINANCE
7 OR OTHER REGULATION RELATING TO THE OPERATION OF AN ASSISTED LIVING HOME
8 ~~[OR ASSISTED LIVING FACILITY]~~ THAT DOES ANY OF THE FOLLOWING:

9 1. IMPOSES A CAP ON THE NUMBER OF RESIDENTS WHO MAY RESIDE AT AN
10 ASSISTED LIVING HOME ~~[OR ASSISTED LIVING FACILITY]~~ THAT IS LOWER THAN ~~[THE~~
11 ~~NUMBER OF RESIDENTS THAT ARE ALLOWED PURSUANT TO TITLE 36, CHAPTER 4,~~
12 ~~RULES ADOPTED BY THE DEPARTMENT OF HEALTH SERVICES OR THE ASSISTED LIVING~~
13 ~~HOME'S OR ASSISTED LIVING FACILITY'S LICENSE]~~ [TEN RESIDENTS].

14 2. RESTRICTS AN ASSISTED LIVING HOME ~~[OR ASSISTED LIVING FACILITY]~~
15 FROM OPERATING ~~[IN AN AREA]~~ [ON A PROPERTY] THAT IS ZONED FOR RESIDENTIAL
16 USE BASED ON EITHER OF THE FOLLOWING:

17 (a) THE NUMBER OF RESIDENTS WHO RESIDE AT THE ASSISTED LIVING HOME
18 ~~[OR ASSISTED LIVING FACILITY]~~ IF THE NUMBER OF RESIDENTS IS ~~[IN COMPLIANCE~~
19 ~~WITH THE NUMBER OF RESIDENTS THAT ARE ALLOWED PURSUANT TO TITLE 36,~~
20 ~~CHAPTER 4, RULES ADOPTED BY THE DEPARTMENT OF HEALTH SERVICES OR THE~~
21 ~~ASSISTED LIVING HOME'S OR ASSISTED LIVING FACILITY'S LICENSE]~~ [TEN OR
22 FEWER RESIDENTS].

23 (b) THE CLASSIFICATION OF THE ASSISTED LIVING HOME ~~[OR ASSISTED~~
24 ~~LIVING FACILITY AS A HEALTH CARE INSTITUTION OR]~~ [AS] ASSISTED LIVING USE.

25 3. REQUIRES AN ASSISTED LIVING HOME ~~[OR ASSISTED LIVING FACILITY]~~
26 TO OBTAIN A VARIANCE, CONDITIONAL USE PERMIT, REASONABLE ACCOMMODATION OR
27 REZONING BASED SOLELY ON THE NUMBER OF RESIDENTS WHO RESIDE AT THE
28 ASSISTED LIVING HOME ~~[OR ASSISTED LIVING FACILITY]~~.

29 B. [EXCEPT AS PROVIDED IN SUBSECTION A OF THIS SECTION,] A COUNTY
30 MAY ENFORCE ~~[APPLICABLE]~~ [AND MAINTAIN ZONING,] BUILDING, FIRE, SAFETY AND
31 HEALTH CODES AND REGULATIONS IF THE CODES AND REGULATIONS ~~[ARE BOTH OF THE~~
32 ~~FOLLOWING:~~

33 ~~1. APPLIED UNIFORMLY TO ALL SIMILAR RESIDENTIAL DWELLINGS.~~

34 ~~2.]~~ DO NOT HAVE THE EFFECT OF IMPOSING AN OCCUPANCY LIMIT THAT IS
35 MORE RESTRICTIVE THAN ~~[THOSE THAT ARE]~~ [WHAT IS] ALLOWED PURSUANT TO
36 ~~[TITLE 36, CHAPTER 4, RULES ADOPTED BY THE DEPARTMENT OF HEALTH SERVICES~~
37 ~~OR]~~ THE ASSISTED LIVING HOME'S ~~[OR ASSISTED LIVING FACILITY'S]~~ LICENSE.

38 C. A PERSON MAY ASSERT A VIOLATION OF THIS SECTION AND MAY BRING AN
39 ACTION FOR DECLARATORY OR INJUNCTIVE RELIEF IN A COURT OF COMPETENT

1 JURISDICTION. THE COURT MAY AWARD ATTORNEY FEES AND COSTS TO A PREVAILING
2 PLAINTIFF.

3 D. THE OCCUPANCY ~~[OR ZONING REGULATION]~~ [LIMIT] OF AN ASSISTED
4 LIVING HOME ~~[OR ASSISTED LIVING FACILITY]~~ IS OF STATEWIDE CONCERN. THE
5 OCCUPANCY ~~[OR ZONING REGULATION]~~ [LIMIT] OF AN ASSISTED LIVING HOME ~~[OR~~
6 ~~ASSISTED LIVING FACILITY]~~ [PURSUANT TO THIS SECTION] IS NOT SUBJECT TO
7 FURTHER REGULATIONS BY A COUNTY AND PREEMPTS ALL INCONSISTENT LAWS,
8 ORDINANCES OR OTHER REGULATIONS ADOPTED BY THE COUNTY.

9 [E. THIS SECTION DOES NOT PROHIBIT OR RESTRICT A MUNICIPALITY FROM
10 ADOPTING A DISTANCE REQUIREMENT PRESCRIBED IN SECTION 11-820.02.]

11 F. THIS SECTION APPLIES TO AN ASSISTED LIVING HOME THAT IS LICENSED
12 AS OF THE EFFECTIVE DATE OF THIS SECTION AND AN ASSISTED LIVING HOME THAT
13 IS LICENSED AFTER THE EFFECTIVE DATE OF THIS SECTION.]

14 ~~[F.]~~ [G.] FOR THE PURPOSES OF THIS SECTION~~[.]~~[.]

15 ~~[1. "ASSISTED LIVING FACILITY" HAS THE SAME MEANING PRESCRIBED IN~~
16 ~~SECTION 36-401.]~~

17 2.] ASSISTED LIVING HOME" HAS THE SAME MEANING PRESCRIBED IN
18 SECTION 36-401.

19 ~~[3. "HEALTH CARE INSTITUTION" HAS THE SAME MEANING PRESCRIBED IN~~
20 ~~SECTION 36-401.]~~

21 Sec. 3. Severability

22 If a provision of this act or its application to any person or
23 circumstance is held invalid, the invalidity does not affect other
24 provisions or applications of the act that can be given effect without the
25 invalid provision or application, and to this end the provisions of this
26 act are severable.

27 Enroll and engross to conform

28 Amend title to conform

JOHN KAVANAGH

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